

Education Support Code, 2026

Post-secondary and training support: eligibility, rates, decisions, and appeals

Draft for adoption by Council and ratification by the Electors | September 30, 2026

Status	Draft for adoption by Council Resolution and ratification by the Electors in a Ratification Vote.
Applies to	Every education support fund administered by the First Nation, including funds received under the Post-Secondary Student Support Program and other federal or provincial agreements, and education support paid from own-source revenue.
Appeals	To the Appeals Panel under the Appeals and Complaints Code (Document 16).
Legal review	To be reviewed by legal counsel before adoption.

Contents

Part 1 Interpretation and Application	3
Part 2 Administration	4
Part 3 Eligibility	5
Part 4 Applications and Decisions	6
Part 5 Support	7
Part 6 Privacy	7
Part 7 Appeals	7
Part 8 Reporting	8
Part 9 Amendment and Coming into Force	8
Schedule A Schedule of Support	9
Explanatory Notes	10

EDUCATION SUPPORT CODE OF THE FORT McMURRAY No. 468 FIRST NATION, 2026

WHEREAS education support administered by the Fort McMurray No. 468 First Nation is held for the benefit of all its Members, wherever they live; and

WHEREAS every Applicant is entitled to know the rules and rates before applying, to receive a written decision on time, and to appeal to someone who did not make the decision;

NOW THEREFORE the Council of the Fort McMurray No. 468 First Nation adopts this Code, subject to ratification by the Electors:

Part 1

Interpretation and Application

1 Citation and Application

- 1.1 This Code may be cited as the *Education Support Code of the Fort McMurray No. 468 First Nation, 2026*.
- 1.2 This Code applies to every Education Support Fund.
- 1.3 Where a Funding Agreement sets an eligibility rule, an eligible expense, or a maximum amount for funds received under it, that rule applies to those funds to the extent it is inconsistent with this Code, and the Education Coordinator shall publish the rule.

2 Definitions

- 2.1 In this Code:
- (a) "Academic Year" means the period from September 1 to August 31;
 - (b) "Applicant" means a Member who applies for support under this Code;
 - (c) "Appeals Panel" means the panel established by the Appeals and Complaints Code;
 - (d) "Education Coordinator" means the employee of the First Nation responsible for administering this Code, however titled;
 - (e) "Education Support Fund" means any fund administered by the First Nation for post-secondary education, university and college entrance preparation, or skills training of Members, whatever its source;
 - (f) "Funding Agreement" means an agreement with a government or agency under which the First Nation receives money for education support;
 - (g) "Home" means the place where the Student is Ordinarily Resident immediately before the start of the Program of Study, whether on or off a Reserve;
 - (h) "Immediate Family" has the meaning given in the Customary Election Regulations of the First Nation;
 - (i) "Member" means a person whose name appears on the Membership List of the First Nation, whether the person lives on or off a Reserve;
 - (j) "Ordinarily Resident" has the meaning given in the Customary Election Regulations of the First Nation;
 - (k) "Program of Study" means a program at a Recognized Institution leading to a certificate, diploma, degree, journey person certification, or university or college entrance;
 - (l) "Recognized Institution" means a post-secondary institution, trade school, or training provider that is accredited or recognized by a province or territory, or that is eligible under a Funding Agreement;
 - (m) "Schedule A" means the schedule of support set out in Schedule A to this Code; and
 - (n) "Student" means an Applicant who has been approved for support.
- 2.2 A term used in this Code that is not defined in section 2.1 has the meaning given in the Governance Constitution or, until it is in force, in the Customary Election Regulations or the Financial Administration Code.

Part 2

Administration

3 Council

- 3.1 Council shall include in each annual budget one education support line for each Education Support Fund, and shall set by Resolution the monthly living support rates for Schedule A.
- 3.2 The Finance Officer shall publish the proposed education support lines and rates at least fourteen (14) days before Council adopts the budget.
- 3.3 No member of Council shall decide, approve, refuse, rank, or attempt to influence any individual application. A member of Council who receives a request from a Member about an application shall refer the Member to the Education Coordinator.
- 3.4 The Councillor holding the Education, Training and Employment Portfolio shall oversee the administration of this Code and report to Council and Members, but has no role in individual decisions.

4 Education Coordinator

- 4.1 The Education Coordinator shall receive applications, decide them under this Code, keep the waiting list, arrange payments, and prepare the reports under Part 8.
- 4.2 The Education Coordinator shall not decide an application by themselves or their Immediate Family. The Band Manager shall assign such an application to another qualified employee, or to a qualified person outside the First Nation, who shall decide it under this Code.
- 4.3 Every decision on an application by a member of Council, an employee who works in education, or Immediate Family of either shall be reported to the Appeals Panel within seven (7) days. The Appeals Panel may review the decision on its own initiative within thirty (30) days and may confirm or change it.
- 4.4 The Education Coordinator shall report in writing to the Band Manager and the Appeals Panel any request or pressure from any person to depart from this Code.

Part 3

Eligibility

5 Eligibility

- 5.1 A Member is eligible for support if the Member:
- (a) has been accepted into, or is enrolled in, a Program of Study at a Recognized Institution;
 - (b) meets any eligibility rule of the Funding Agreement under which the support is paid; and
 - (c) is not ineligible under section 6.
- 5.2 A Member who lives off the Reserves has the same eligibility, the same priority, and the same rates as a Member who lives on a Reserve. A decision that uses place of residence as a reason, where Schedule A does not, is void, and the Education Coordinator shall issue a corrected decision within fourteen (14) days.
- 5.3 Part-time Students are eligible for tuition, mandatory fees, and books and required materials in proportion to their course load, and are eligible for living support only where the Funding Agreement permits.

6 Academic Progress

- 6.1 A Student who completes fewer than sixty percent (60%) of the courses funded in a term is placed on probation for the next term, and shall be told in writing.
- 6.2 A Student on probation who again completes fewer than sixty percent (60%) of the courses funded in a term is not eligible for support for the next two (2) terms.
- 6.3 Sections 6.1 and 6.2 do not apply where the shortfall was caused by illness, a death in the family, a disability, caregiving duties, or another documented hardship.
- 6.4 A Student who withdraws from a Program of Study shall tell the Education Coordinator within fourteen (14) days. Living support paid for months after the withdrawal shall be repaid under a written repayment arrangement, and support is not otherwise repayable.

Part 4

Applications and Decisions

7 Application Deadlines

- 7.1 Applications shall be filed with the Education Coordinator by:
- (a) June 1, for programs starting in the fall term or for a full Academic Year;
 - (b) November 1, for programs starting in the winter term; and
 - (c) March 1, for programs starting in the spring or summer term.
- 7.2 An application filed after the deadline shall be decided if funds remain after the applications filed on time have been decided.
- 7.3 Continuing Students shall confirm their enrolment and file their transcripts for the previous term by the same deadlines.

8 Decisions

- 8.1 The Education Coordinator shall acknowledge each application in writing within seven (7) days and shall say what, if anything, is missing.
- 8.2 The Education Coordinator shall decide each complete application in writing within thirty (30) days after it is complete or after the deadline in section 7.1, whichever is later.
- 8.3 The decision shall state the amount for each row of Schedule A, the months covered, the payment dates, and the section relied on. A refusal or placement on the waiting list shall state the reason and the appeal deadline.
- 8.4 If no decision is given within the time in section 8.2, the application is deemed refused on the next day, and the Applicant may appeal under Part 7.

9 Priority When Funds Are Limited

- 9.1 Where the funds in an Education Support Fund are not enough for every eligible Applicant, complete applications filed on time shall be approved in the following order:
- (a) continuing Students who are not ineligible under section 6;
 - (b) Applicants who graduated from secondary school, or completed a university and college entrance preparation program, in the previous twelve (12) months;
 - (c) Applicants returning to studies after a break; and
 - (d) all other eligible Applicants.
- 9.2 Within each category, applications are ranked by the date they became complete.
- 9.3 Applicants who cannot be funded shall be placed on a waiting list, published monthly by application number without names, and shall be funded in order if money becomes available.

Part 5 Support

10 Schedule of Support

- 10.1 Support is paid at the amounts in Schedule A. Every Student in the same row receives the same rate.
- 10.2 Tuition and mandatory fees shall be paid directly to the Recognized Institution.
- 10.3 Living support shall be paid by direct deposit on or before the first business day of each month of study. A payment that is more than five (5) business days late shall be reported to the Band Manager and included in the quarterly report.
- 10.4 A Student who receives support from another source for the same expense shall disclose it, and the support under this Code shall be reduced by that amount.

Part 6 Privacy

11 Student Records

- 11.1 Applications, transcripts, and other records about a Student are personal information, and shall be collected, used, and disclosed only as the Access to Information and Privacy Code permits.
- 11.2 No list of Students, Applicants, or amounts paid to identifiable persons shall be published.

Part 7 Appeals

12 Appeal to the Appeals Panel

- 12.1 An Applicant or Student may appeal a decision under this Code, or a deemed refusal under section 8.4, to the Appeals Panel under the Appeals and Complaints Code within thirty (30) days after receiving it or after the deemed refusal.
- 12.2 The Appeals Panel shall decide an appeal under this Code within twenty-one (21) days after it is filed, and its decision replaces the decision appealed from.
- 12.3 Until the Appeals Panel is established, an appeal under this section shall be heard by a lawyer, retired judge, or person experienced in adjudication who is not a Member, an employee of the First Nation, or Immediate Family of a member of Council, selected by Council by Resolution.

Part 8

Reporting

13 Reports

- 13.1 Within thirty (30) days after the end of each quarter of the fiscal year, the Education Coordinator shall publish the number of applications received, approved, refused, and waitlisted, the number of appeals, and the total paid under each row of Schedule A, without names.
- 13.2 Each year, the Education Coordinator shall present a report at the Annual General Assembly showing the number of Students supported, the number who completed their Program of Study, and the education support budget compared with spending.

Part 9

Amendment and Coming into Force

14 Amendment

- 14.1 An amendment to Parts 2 to 7 of this Code, or to the rows of Schedule A other than the monthly rates set under section 3.1, has no effect unless it is approved by the Electors in a Ratification Vote.
- 14.2 Council may amend this Code by Resolution, without a vote of the Electors, only to increase an amount, add an eligible expense, or shorten a time limit, after thirty (30) days' published notice.
- 14.3 A Resolution that purports to amend this Code contrary to section 14.1 is void.

15 Coming into Force

- 15.1 This Code comes into force on the date of the Resolution adopting it and applies to every application decided after that date.
- 15.2 Council shall put this Code to the Electors for ratification within twelve (12) months after it comes into force.

Schedule A

Schedule of Support

A1.1 The following support is available to each Student, subject to sections 1.3 and 5.3:

Item	Amount	Rule
Tuition and mandatory fees	The amount invoiced by the Recognized Institution	Paid directly to the institution. The same rule applies to every Student in the program
Books and required materials	Up to eight hundred dollars (\$800.00) in an Academic Year	Receipts filed within thirty (30) days, or the next payment waits until they are filed
Living support, Program of Study more than eighty (80) kilometres from the Student's Home	The monthly rate set by Council under section 3.1 for this row	One rate for every Student in this row, with an added amount for each dependant if the rate so provides
Living support, Program of Study eighty (80) kilometres or less from the Student's Home	The monthly rate set by Council under section 3.1 for this row	One rate for every Student in this row, with an added amount for each dependant if the rate so provides
Travel, Program of Study more than eighty (80) kilometres from the Student's Home	One return trip Home in each Academic Year at the lowest available fare	Paid if the Funding Agreement or the budget line permits

A1.2 Place of residence on or off a Reserve does not change the row that applies to a Student.

Adopted by Council

Resolution No. and date

Signature of Chief

Signature of Councillor

Ratified by the Electors

Date of vote and votes for / against / total
Electors on the List

Signature of the Electoral Officer

Explanatory Notes

1. Purpose

This Code sets one set of rules and one set of rates for education support, written decisions within 30 days, and an appeal to the Appeals Panel. These notes are not part of the Code.

2. Key provisions

- Members on and off the Reserves have the same eligibility, priority, and rates. A decision based on residence where the schedule does not use it is void (section 5.2).
- Council sets the budget line and the monthly living support rates, but no member of Council takes part in any individual decision (section 3).
- Applications by members of Council, education staff, and their families are reported to the Appeals Panel, which may review them (section 4.3).
- A written decision within 30 days. No decision means a deemed refusal that can be appealed (section 8).
- A published priority order when funds run short, and a waiting list by number (section 9).
- Books and materials up to \$800 a year. Living support at one rate for each distance row, more or less than 80 kilometres from Home (Schedule A).
- Appeals decided within 21 days (section 12).

3. Legal sources and reference models

Source	Provision
Indigenous Services Canada, Post-Secondary Student Support Program and University and College Entrance Preparation Program national guidelines	Eligibility, eligible expenses, and maximum amounts for federally funded post-secondary support, which apply to those funds under section 1.3
Members' Bill of Rights (Document 04), section 4	Written rules, written decisions with reasons, and an appeal for every program and benefit

4. Records required before adoption

- The current education funding agreements and the guidelines that apply to them.
- Any existing post-secondary or training support policy, and the current list of Students and pending applications.